

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 23-02
BED BATH & BEYOND INC. v.
ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

**STIPULATED PRESERVATION PLAN
FOR COMPLAINANT BED BATH & BEYOND INC.**

In light of the current pendency of, and uncertainties associated with, Complainant Bed Bath & Beyond Inc.'s ("BBBY" or "Complainant") bankruptcy petition before the U.S. Bankruptcy Court for the District of New Jersey, Case No. 23-13359 (VFP) (the "Bankruptcy Proceeding"), and at the request of Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively, "OOCL" or "Respondents"), Complainant and Respondents hereby stipulate to, and submit for the Presiding Officer's approval, the following Stipulated Document Preservation Plan (the "Plan") for the preservation of Complainant's documents and electronically stored information ("ESI") potentially relevant to this action.

I. Purpose

The purpose of this Plan is to memorialize the reasonable steps being taken or to be taken by Complainant to preserve and manage the documents and ESI of Complainant that may be relevant to the claims and defenses in this action during and following the Bankruptcy Proceeding. Nothing in this Plan is intended, or shall be interpreted, to broaden or narrow the scope of Complainant's rights, obligations, and defenses under the Federal Maritime Commission's Rules

of Practice and Procedure or other applicable laws with respect to the preservation, production, or spoliation of potentially relevant evidence.

II. Scope

This Plan applies to the “Preservation Materials” outlined in the next section below. Complainant’s efforts to preserve Preservation Materials pursuant to this Plan shall not be construed as an admission that any Preservation Materials are relevant to the claims or defenses, or admissible, in this action or any other legal action, or as an agreement that any Preservation Materials will be produced in discovery in this action or any other legal action. Complainant reserves all rights with respect to the Preservation Materials, and this Plan serves only to memorialize Complainant’s reasonable efforts to preserve Preservation Materials from inaccessibility, loss, deletion, or destruction for purposes of potential use in this action during and after the pendency of the Bankruptcy Proceeding.

III. Preservation Materials

Complainant has engaged a third-party e-discovery vendor, Bright Labs Services, LLC, to (1) coordinate with Complainant’s counsel to collect documents and ESI potentially relevant to the claims and defenses in this action and (2) host such documents (or scanned images thereof) and ESI in an electronic database independent of Complainant’s own information technology systems. The Preservation Materials may include emails, electronic documents, and scanned images of certain hard-copy documents from on or after January 1, 2020, associated with the following current and former employees of Complainant:

1. Juan Guerrero
2. Jennifer Lawler
3. Ian Pinchuk
4. Paul Pastor

5. Juan Pena
6. Melinda Porter
7. Gisella Stupnik
8. Michael Festa
9. Reid Klosowsky
10. Seweryn (Sev) Soban
11. Pat Hackett
12. Ed Wtulich
13. Eric Topa
14. Erin Fitzgerald
15. Jeff Macak
16. Mark Tritton
17. Holly Etlin
18. Sue Gove
19. Laura Crossen
20. Rick Cunniff
21. [Potentially other custodians to be identified by the parties or counsel]

The Preservation Materials may also include electronic and hard-copy financial records, purchasing and sales records, invoices and payment records, contracts and amendments, internal and external reporting concerning profitability, profit margins, inventory/stock levels, write-offs, mark-downs, documents and communications to, from or involving OOCL and its booking agents, and records and reporting used by Complainant's supply chain team, associated with other current or former employees or departments of Complainant or stored in departmental or centralized network drives, databases, or other repositories.

IV. Preservation Roles

Unless and until Complainant ceases to have any in-house legal employees, Complainant shall assign to such employees responsibility to oversee the implementation of this Plan, in coordination with Complainant's outside counsel in this action and relevant third-party vendors. Unless and until Complainant ceases to have any information technology employees, Complainant shall assign to such employees responsibility to implement and maintain measures necessary to preserve, and prevent the inaccessibility, loss, deletion, or destruction of, Preservation Materials identified by Complainant's in-house legal employees or Complainant's outside counsel in this action, and to facilitate the transfer of copies of such Preservation Materials to Complainant's third-party vendor for hosting.

V. Document Hold Notices to Potential Custodians of Relevant Documents and ESI

Complainant and Complainant's outside counsel have already issued document hold notices to known relevant employees of Complainant, and to certain known contractors and agents of Complainant, instructing them to preserve documents and ESI potentially relevant to this action.

[SIGNATURE PAGE FOLLOWS]

Dated: July 21, 2023

/s/ Matthew J. Reynolds
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Respectfully submitted,

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